



POLICE DEPARTMENT CITY OF NEW YORK

January 9, 2017

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Randolph Price
Tax Registry No. 946132
Housing PSA 4
Disciplinary Case No. 2014-11682

Charges and Specifications:

1. Said Police Officer Randolph Price, on or about February 10, 2013, at approximately 0420 hours, while assigned to the 41st Precinct and on duty, in the vicinity of [REDACTED] Bronx County, wrongfully used force in that he punched Person A in the face without police necessity.
P.G. 203-11 - USE OF FORCE
2. Said Police Officer Randolph Price, on or about February 10, 2013, at approximately 0420 hours, while assigned to the 41st Precinct and on duty, in the vicinity of [REDACTED] Bronx County, wrongfully used force in that he slammed Person A to the ground without police necessity. (*Dismissed*)
P.G. 203-11 - USE OF FORCE
3. Said Police Officer Randolph Price, on or about February 10, 2013, at approximately 0420 hours, while assigned to the 41st Precinct and on duty, in the vicinity of [REDACTED] Bronx County, wrongfully used force in that he punched Person A in the face without police necessity. (*Dismissed*)
P.G. 203-11 - USE OF FORCE

Appearances:

For CCRB-APU: Raasheja Page, Esq.
Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

For Respondent: Matthew Schieffer, Esq.
The Quinn Law Firm
Crosswest Office Center
399 Knollwood Road – Suite 220
White Plains, NY 10603

Hearing Date:

October 6, 2016

Decision:

Not Guilty

Trial Commissioner:

ADCT Paul M. Gamble

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on October 6, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charge. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Not Guilty of the charged misconduct.

FINDINGS AND ANALYSIS

The following is a summary of the facts which are not in dispute. On February 10, 2013, Respondent¹ was conducting a directed patrol in front of "██████████" a gentlemen's club at ██████████ in the Bronx, located within the 41st Precinct (T. 16). Due to the high number of complaints generated from that location, officers from the precinct are stationed in front of the club on weekends (*Id.*).

Person A had been hired to host an event at the club and became involved in a dispute over her payment for the night (T. 18; CCRB Ex. 3 at 6-7). At approximately 0420 hours, Person A and her brother, Person B, were removed from the club by club security following a physical altercation inside (T. 18; CCRB Ex. 3 at 8-9). Once outside,

¹ At the time of this incident Respondent held the rank of Police Officer, but has since been promoted to the rank of Sergeant.

Person A began banging on the club's door (T. 17; CCRB Ex. 3 at 9). Thereafter, Person A, her brother, and a friend were arrested and placed in a marked Department van for transport to the 41st Precinct (T. 19, CCRB Ex. 3 at 12-13).

While in the Department van, despite being rear cuffed, Person A was able to reach into her waistband, pull out her mobile phone, and engage in a telephone conversation (T. 21; CCRB Ex. 3 at 13). When Respondent noticed Person A using her phone, he attempted to remove it; the details of this struggle are in dispute (T. 21-22; CCRB Ex. 3 at 13). Respondent ultimately gained possession of the phone and Person A was transported to the 41st Precinct for arrest processing.

Person A was subsequently transported to Lincoln Hospital, where she was treated for swelling to the left eye and left cheek, as well as a nose bleed, then released at 0733 hours (CCRB Ex. 3 at 14; CCRB Ex. 4). A copy of Person A's mugshot photo was entered into evidence as CCRB Exhibit 1. The photo depicts Person A's left eye swollen shut and bruised. Respondent brought assault charges against Person A, of which she was eventually acquitted at trial.

Person A currently has a pending civil suit as a result of this incident.

The circumstances of Person A's initial arrest and her interaction with Respondent while handcuffed in the Department van are in dispute. Respondent stands charged with punching Person A in the face without police necessity.

Person A did not appear to testify at trial². A transcript of her CCRB interview conducted on April 4, 2013, was entered into evidence in lieu of her live testimony (CCRB Ex. 3).

²

CCRB proffered that Person A had relocated to [REDACTED] based on information provided by the attorney in her civil action against the City of New York.

During the interview, Person A stated that at one point that evening, Person B, who acts as her security while she is working, was attacked by a group of people inside the club (*Id.* at 8-9). At that point, she removed her shoes so that she would not fall and injure herself while she tried to help her brother (*Id.* at 9). Both she and Person B were removed from the club. While outside, Person A noticed a large police presence, but began banging on the club's door because her shoes were still inside (*Id.*). According to Person A, as she banged on the door for about one minute, she turned her head to the right and Respondent punched her in the left eye (*Id.* at 10, 33, 37). Later in the interview, she described the initial hit to her face as a slap (*Id.* at 11). Respondent then picked her up by her jacket and slammed her face onto the concrete (*Id.*). While she was on the ground, Respondent put his knee into Person A's back and stepped on her right foot, causing a bruise to her foot (*Id.* at 45).

At some point while she was being arrested, her mobile phone, which she had stowed in the waistband of her pants, accidentally dialed her husband's phone number. As a result, according to Person A, her husband was able to hear what was going on in real time (*Id.* at 11-12).

Person B and a third individual were also arrested; they were placed in a Department van and all three were seated in the second row (*Id.* at 12). Person A's stated that she was closest to the window, the third individual sat in the middle, and Person B was closest to the door (*Id.*). While seated and rear-cuffed, Person A was able to reach into her waistband, grab her phone, and speak to her husband who was still on the line (*Id.* at 13). When Respondent noticed that she was using her mobile phone, he "went bananas" and started punching her in the face until he was able to get the phone from her (*Id.*). Two officers then entered the van, seated in the driver and

front passenger seats, with Respondent seated in front of Person A in the first row and drove to the precinct (*Id.* at 14).

At the precinct, Person A requested to be taken to the hospital because her left eye had swollen shut, her nose was bleeding and she was in extreme pain (*Id.*).

According to Person A, who also works as a model, she has lost work opportunities due to the injuries to her face; in addition, she has suffered from lightheadedness and bouts of nausea (CCRB Ex. 3, 25-27). Person A's stated that she had one drink while inside the club and denied being intoxicated, though hospital records state that Person A was "agitated" and "verbally aggressive with staff and officers, yelling and swearing" (*Id.* at 35-36; CCRB Ex. 4).

Person A denied having kicked Respondent while in the Department van (*Id.* at 18). In fact, she expressed disbelief that she had been accused of doing so, claiming at one point, "From what I was told, I kicked [Respondent] in the face" (*Id.* at 17-18). She further described the implausibility of such a claim, noting that based on the layout of the Department van and her positioning in it, it would not have been possible for her to have reached her leg over the row of seating to kick Respondent (*Id.* at 18).

Person B also did not appear to testify at trial; however, a transcript of a telephone interview with a CCRB investigator was entered into evidence as CCRB Exhibit 2. Person B stated that as Person A was outside the club attempting to recover additional fees she claimed she deserved, officers approached Person A and told her to calm down (CCRB Ex. 2, p. 3-4). The officers then "punched her in her face and threw her to the ground..." (CCRB Ex. 2, p. 4). Person B tried to intervene and was "tossed to the ground" before being handcuffed (*Id.*).

Person B went on to explain that sometime after they had been placed in the police van, Person A engaged in a telephone conversation with her husband using her mobile phone.

Person A's refused officers' requests to hand over the phone and was punched twice in the face (*Id.* at 5). Person B stated that Person A suffered a black eye and swelling to her lip. (*Id.* at 6-7). He acknowledged that both he and Person A were drinking alcohol that night, but denied that they were drunk (*Id.* at 11-12).

Respondent testified that at approximately 0420 hours, he observed Person A acting erratically in front of the club. She was walking between the front and side doors of the club screaming obscenities and repeatedly kicking the club's front door (T. 17). He overheard one of the club's bouncers inform the responding officers that Person A was involved in a physical altercation inside the club and was ordered to leave. When she refused Person A was physically escorted out of the club (T. 18).

Thereafter, from a distance of about 10 to 15 feet. Respondent observed Person A resist the efforts of three officers to arrest her by twisting and flailing her arms and body (T. 19, 26). The officers forcibly took Person A to the ground and were able to place her in handcuffs (T. 19). She was then brought to the marked Department van by which Respondent was standing (T. 19, 25). According to Respondent, Person A appeared very intoxicated and smelled strongly of alcohol. He described her clothing as "disheveled" and noted that she was barefoot (T. 19).

Respondent explained that the Department van had three rows of seating behind a driver and passenger seat. He directed Person A to sit in the van's middle row. Person B and a friend were also seated in the van, having been arrested for Disorderly Conduct (T. 19-20). Person A was seated in between Person B and the third individual (T. 20).

Respondent then observed Person A, despite being rear-cuffed, engaging in a conversation on her mobile phone (T. 21). She ignored Respondent's repeated requests to give

the phone to him and then threw it onto the floor (T. 21). The phone landed under the van's first row of seating (T. 21). Respondent then stepped into the van, placed his left knee on the front row seat, and used his right hand to retrieve the phone from underneath the seat (T. 21). As he stood up, Person A kicked him on the left part of his face (T. 22). He described that she was able to "leverage from one of her other feet to raise up and lean back on the back of the second row seat, and she used another [sic] leg" to kick him over the front row of seating (*Id.*).

Person A attempted to kick Respondent multiple times, but made contact only once (*Id.*). In response, Respondent grabbed Person A's leg and forcibly placed it on the floor of the van. He then put both hands on her shoulders "to hold her in place" (T. 23). According to Respondent, she "eventually tired out and complied" with his orders to stop (*Id.*).

As a result of being kicked, Respondent suffered swelling and redness to the left side of his face (*Id.*). At the precinct, Respondent was given an ice pack by EMS personnel (*Id.*). When Respondent saw Person A at the precinct, he noticed that she had swelling and redness to her face (T. 24).

Sometime thereafter, Respondent explained the circumstances of Person A's arrest and her assault on him to an Assistant District Attorney. He signed an affidavit charging Person A with Assault in the Third Degree (*Id.*).

On cross-examination, Respondent testified that he inaccurately told CCRB investigators during an interview regarding this incident that Person A had kicked him four times (T. 30). He acknowledged that no photos of his injuries were taken even though Person A was initially charged with assault on a police officer (T. 31).

Respondent denied having punched Person A in the face and asserted that the physical contact he had with her was when he grabbed her shoulders and pushed them back against the seat in an effort to restrain her (T. 32).

Respondent also acknowledged that he made inaccurate representations to the Assistant District Attorney handling the case and in a superseding complaint filed against Person A (T. 33-34). Admittedly, Respondent signed a superseding complaint attesting that he had attempted to arrest Person A and that she resisted arrest, despite not having been physically involved in her arrest (T. 35). However, Respondent testified he merely misinterpreted the term "arresting officer" (T. 36).

Few things are more difficult, yet more fundamental to the role of a trier of fact, than attempting to reconstruct past events on the basis of opposing accounts. In a hearsay case of this nature, particular attention must be paid to the evidence. This tribunal has held many times that while hearsay is admissible in administrative proceedings, and may be the sole basis for a finding of fact, it must be carefully evaluated before it is relied upon. The more important the evidence is to the case, the more critically it should be assessed (*Police Department v. Acosta*, OATH Index No. 464/00 [Jan. 7, 2000]). Factors such as corroboration, consistency, bias, logic and the degree to which an account comports with common sense and general human experience must be taken into account (*Maloney v. Suardy*, 202 A.D.2d 297, 609 N.Y.S.2d 179 [1st Dep't 1994]).

The primary legal issue raised by the proof presented here is whether the hearsay statements of Person A and Person B are sufficiently reliable to support a finding that Respondent is guilty of the charged misconduct. This tribunal has previously noted that disciplinary charges relying on hearsay are difficult to prove unless the hearsay is detailed, persuasive and unencumbered with credibility problems (*Police Department v. Lowe*, OATH

Index No. 892/91 [June 3, 1991], citing *Transit Authority v. Maloney*, OATH Index No. 500/91 [Apr. 19, 1991], *aff'd sub nom. Maloney v. Suardy*, 202 A.D.2d 297, 609 N.Y.S.2d 179 [1st Dep't 1994]).

Person A has a pending civil action against the City of New York arising from this incident; as such, she is an interested witness with an incentive to tailor her testimony to enhance her perceived financial interest. Moreover, the only other witness to corroborate her version of events is Person B, her brother. There is a strong presumption that he would be biased in favor of his sister; he therefore has an incentive to shade his testimony to conform to her financial interest. Finally, neither witness appeared before this tribunal.

Even if the tribunal were to put aside the serious testimonial infirmities of both of these witnesses, the circumstances of the case are murky, at best. Person A's arrest occurred after a physical altercation between her brother and unknown persons inside a gentleman's club where alcohol was served and consumed. According to Person A's own statement, she joined the altercation in an attempt to defend her brother. Consequently, Person A was ejected from the club and later was involved in a struggle as she attempted to re-enter.

Person A first alleged that Respondent punched her in the face without provocation as she attempted to re-enter the club, then tempered that accusation to him slapping her. Person A then alleged that Respondent punched her in the face again inside a police van, while rear-cuffed, because she was using her mobile phone.

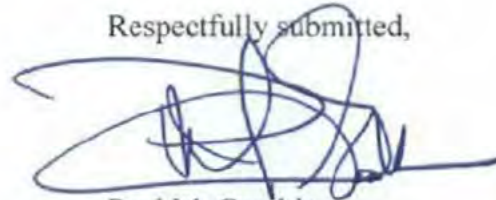
While it is not impossible that Respondent could have struck Person A's as she alleged, resulting in a black eye, it is also possible that Person A was punched by either: (1) a person or persons unknown inside the club when her brother was attacked; (2) club security as she was being ejected from the club; or (3) during the struggle as she was attempting to re-enter the club.

All of these alternative sources of injury would have presented themselves before she encountered Respondent.

In making these findings, I must note that the tribunal found Respondent to be, at times, less than straightforward in his testimony. It is certainly of concern that Respondent admitted to being "inaccurate" in his statements to CCRB and the District Attorney's Office. Respondent executed an affidavit in which he asserted that Person A resisted arrest after he attempted to arrest her when, in fact, he had nothing to do with her arrest. Respondent's explanation that this was due to a misinterpretation of the term "arresting officer" was not totally convincing. Respondent's questionable testimony on these issues, however, does not relieve APU of its burden of proof, particularly in a hearsay case. Given the numerous problems with the out-of-court statements in evidence, the proof was insufficient to sustain the charges.

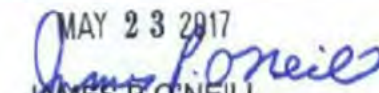
Based upon the credible, relevant evidence in the record, I find that CCRB has failed to meet its burden of proof by a preponderance of the evidence; accordingly, I find Respondent Not Guilty.

Respectfully submitted,



Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

MAY 23 2017

JAMES P. O'NEILL
POLICE COMMISSIONER